

February 01, 2017



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 16253
(FIRST REVISION)

EXPIRATION DATE: 2020-10-31

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Trinity Manufacturing, Inc.
Hamlet, NC
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of non-DOT specification cylinders (ADR foreign cylinders) requalified in accordance with European Standard EN 1803:2002, *Transportable Gas Cylinders - Periodic Inspection and Testing of Welded Carbon Steel Gas Cylinders* in lieu of the requalification requirements in 49 CFR Part 180, Subpart C. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 171.23(a)(1) in that non-DOT specification cylinders containing a residue of hazardous material may be transported to or within the United States and § 171.23(a)(4)(i) in that the non-DOT specification cylinders are requalified by alternative methods in lieu of those specified in Subpart C of Part 180.

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5. BASIS: This special permit is based on the application of Trinity Manufacturing, Inc. dated November 21, 2016 submitted in accordance with § 107.109. .
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Chloropicrin	6.1	UN1580	I (Hazard Zone B)
Toxic by Inhalation Liquid, Corrosive, Flammable, n.o.s. (Chloropicrin, 1,3-Dichloropropene)	6.1	UN3489	I (Hazard Zone B)
Toxic by inhalation liquid, corrosive, n.o.s. (Chloropicrin, 1,3-Dichloropropene)	6.1	UN3390	I (Hazard Zone B)

7. SAFETY CONTROL MEASURES:

a. PACKAGING: The prescribed packaging is a non-DOT specification welded steel 70-liter gas cylinder made in accordance with the European Council Directive 84/527/EEC. The authorized cylinders are limited only to the manufacture and design for which approval information and drawings are on file with the Office of Hazardous Materials Safety Approvals and Permits Division that were submitted as part of Trinity Manufacturing, Inc.'s special permit application.

- b. MARKING:

(1) Each cylinder must be permanently stamp marked "DOT-SP 16253" preferably in the shoulder of the cylinder or alternatively in another location as specified in 49 CFR § 178.61(o).

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(2) Each cylinder must also be plainly and durably marked "For Export Only" near the special permit number marking.

c. REQUALIFICATION:

(1) Each cylinder must be requalified once every 5 years by subjecting the cylinder to periodic inspection and testing in accordance with EN 1803:2002, *Transportable Gas Cylinders - Periodic inspection and testing of welded carbon steel gas cylinders*. The valve shall be inspected per EN 14189, *Transportable gas cylinders - inspection and maintenance of cylinder valves at time of periodic inspection of gas cylinders*.

(2) Any cylinder which does not successfully pass the periodic inspection and testing requirements of EN 1803:2002 shall be rejected. The accepted cylinders shall be stamped in accordance with BS EN 13769:2009 to include the month and year of requalification and the requalifier's identifying mark. Only qualified persons holding a valid competent authority approval may perform requalification functions.

d. OPERATIONAL CONTROLS:

(1) Prescribed cylinders under the terms of this special permit may only be requalified at the following location:

TriEst Ag Group, Inc. (DOT RIN H961)
900 West Golden Road, Tifton, GA 31793

(2) Before each filling in the United States, the filler shall inspect that the retest date marked on the cylinder is valid and conduct external visual inspection of the cylinders in accordance with CGA Pamphlet C-6, *Standards for visual inspection of steel compressed gas cylinders*.

(3) Prescribed cylinders may be only filled and shipped for Trinity Manufacturing, Inc. by TriEst Ag Group, Inc. filling locations in Tifton, GA, Greenville, NC, or Palmetto, FL.

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(4) The shipping papers must identify the cylinders with the special permit number "DOT-SP 16253" and must carry the following certification: "These cylinders have been retested and refilled for export only."

(5) Labeling of the cylinders, placarding of the containers for transport and shipping documents must comply with 49 CFR Part 172 hazard communication requirements, as applicable. A toll free access number must be listed on all labels and shipping documents to support medical or transportation emergencies.

(6) Prescribed cylinders containing residue of the hazardous materials in paragraph 6 may only be transported for purposes of requalification to the location in paragraph 7.d.(1). Prescribed cylinders containing an amount of hazardous materials in paragraph 6 greater than a residue may only be transported in accordance with § 171.23 (i.e., for export only under the terms of CA2007030018).

(7) Prescribed cylinders authorized under this special permit must meet the packaging requirements for toxic materials in 49 CFR § 173.40, as applicable.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. Transportation of Division 6.1 materials when authorized aboard a cargo vessel must be in accordance with the stowage and quantity limitations specified in the § 172.101 Hazardous Materials Table.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo vessel.

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10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this

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special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO:TD